

109	Gonzalez vs. Flood Management Services, Inc. 2024-01403048	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Michael P. Gonzalez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 5/31/2024, Plaintiff Michael P. Gonzalez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Flood Management Services, Inc. (ROA #2.) Defendant answered on 8/7/2024. (ROA #14.) The operative complaint is the first amended complaint, filed on 10/23/2024 pursuant to the parties’ stipulation and the court’s order, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #30.) Defendant answered on 11/22/2024. (ROA #34.) On 9/23/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$275,000. The GSA includes \$20,000 allocated for PAGA penalties. On 2/19/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #57.) Counsel then submitted supplemental materials, including an amended version of the Class Action and PAGA Settlement Agreement and an amended Class Notice (ROA #62). On 5/21/2026, the Court continued the second hearing on the motion and asked Class Counsel to address various issues. (ROA #64.) Counsel then submitted supplemental materials, including a second amended version of the Class Action and PAGA Settlement Agreement (“2nd Amended Settlement”) and a further amended Class Notice (ROA #73). Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing. Within five (5) court days, Class Counsel must provide a further amended Proposed Order that (1) fills in the correct ROA number for counsel’s 2nd supplemental declaration attaching the Second Amended Settlement; (2) proposes a Final Approval hearing date that is on a Thursday, as this department hears Law & Motion on Thursdays; and (3)
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		states the correct deadline to file the Motion for Final Approval based on the new proposed hearing date. The Motion for Final Approval will be set in accordance with the Court's Order Granting Preliminary Approval after Class Counsel proposes a realistic date. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Fritch vs. The Coca-Cola Company 2023-01313737	1. Motion for Final Approval of Class/PAGA Settlement 2. Order to Show Cause re: Monetary Sanctions Motion for Final Approval The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Nicole Fritch's Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA settlement. On March 21, 2023, Plaintiff Nicole Fritch, on behalf of the State of California as a private attorney general ("Plaintiff"), filed a PAGA-only Representative Action Complaint against Defendant The Coca-Cola Company ("Defendant"). The Complaint sought PAGA penalties for underlying Labor Code violations, including failure to pay all minimum and overtime wages due, failure to provide meal periods or pay premium pay, failure to provide rest breaks of pay premium pay, failure to include incentive pay in calculating regular pay rate for purposes of overtime and meal and rest break